

# PUBLIC INTERNATIONAL LAW

## Nature and Basis of International Law

### ➤ Nature of International Law

International Law is a set of rules and principles that governs the conduct of states and other international actors (such as international organizations and, in certain cases, individuals) in their mutual relations.

#### 1. Key Features of International Law:

**Lacks a central authority:** There is no world government or supreme law-making body.

**Based on consent:** States follow international law mainly because they have agreed to be bound by it.

**Horizontal structure:** All sovereign states are considered equal, unlike domestic legal systems with hierarchical structure.

**Non-enforceable like domestic law:** Enforcement mechanisms are limited. Compliance depends largely on mutual respect, diplomacy, and sometimes pressure from other states or organizations.

#### 2. Public vs. Private International Law:

**Public International Law:** Governs relationships between sovereign states and international organizations (e.g., UN Charter, Geneva Conventions).

**Private International Law:** Deals with disputes involving private individuals or corporations crossing international borders (e.g., marriage, contracts, child custody).

#### 3. Theoretical Approaches:

**Natural Law Theory:** International law arises from moral principles and reason that are common to all humanity.

**Positivist Theory:** Law is based on state consent, expressed through treaties or customary practices.

**Consent Theory:** A state is bound by only those rules it has agreed to follow.

**Functional/Realist Theory:** States follow international law because it benefits their interests and promotes cooperation.

### ➤ II. Basis of International Law:

The basis of international law refers to the foundation or justification for its existence and its authority over states. These include:

#### 1. Sovereign Consent:

International law is based on voluntary consent of sovereign states.

States are not subject to laws they haven't agreed to, which is why treaties are binding only on signatory states.

## **2. Pacta Sunt Servanda:**

A Latin maxim meaning “agreements must be kept.”

It’s a fundamental principle that ensures treaties are honored by states in good faith.

## **3. Custom and Practice:**

Long-standing customary practices followed by states over time gain legal authority, especially when followed out of a belief in legal obligation (*opinio juris*).

## **4. Mutual Interests and Interdependence:**

In today’s globalized world, international cooperation is essential for trade, environment, security, and human rights.

States comply with international law to maintain peace, stability, and beneficial relations.

## **5. Recognition by the International Community:**

The legitimacy of international law comes from the recognition and adherence by a majority of states, international courts (like ICJ), and organizations (like UN).

## **6. International Morality and Justice:**

Some international laws are rooted in universal moral values, such as human dignity, humanitarian concerns, and justice (e.g., laws against genocide, slavery, and torture).

## **Conclusion:**

International law is not enforced by a central authority, yet it plays a powerful role in regulating relations between states. Its nature is unique, as it functions through consent, cooperation, and mutual interest rather than coercion.

The basis of its authority lies in sovereign will, customs, treaties, and shared moral values, making it a dynamic and evolving field of law essential for global peace and order.

# **Sources of International Law (Article 38(1) of ICJ Statute)**

According to Article 38(1) of the Statute of the International Court of Justice (ICJ), the sources of international law are:

## **1. International Conventions (Treaties):**

**Definition:** Formal written agreements between states or international organizations.

**Binding Nature:** Parties are legally bound once they ratify the treaty.

## **Examples:**

UN Charter

Vienna Convention on Law of Treaties

Geneva Conventions

## **2. International Custom (Customary International Law):**

**Definition:** Practices that are consistently followed by states out of a sense of legal obligation (opinio juris).

### **Two Elements:**

State Practice (usus)

Belief in Legal Obligation (opinio juris)

### **Examples:**

Diplomatic immunity

Law of the sea (before UNCLOS)

## **3. General Principles of Law Recognized by Civilized Nations:**

**Definition:** Basic legal principles common to major legal systems (like equity, good faith, estoppel, res judicata).

**Role:** Fills gaps where treaties or customs don't exist.

## **4. Judicial Decisions and Teachings of the Most Highly Qualified Publicists:**

Subsidiary means for determining rules of law.

### **Examples:**

ICJ judgments

Writings of jurists like Hugo Grotius, Oppenheim, Ian Brownlie

## **5. Decisions of International Organizations (Emerging Source):**

While not formally recognized in Article 38, decisions of bodies like the UN Security Council and General Assembly have persuasive authority, especially when widely accepted.

### **Conclusion:**

The sources of international law provide the foundation for global legal order. While treaties and customs are primary sources, general principles and judicial decisions act as gap-fillers. Together, they ensure that international relations are governed by rules, justice, and legal certainty.

# **Subjects of International Law**

### **Definition:**

Subjects of International Law are those entities that possess international personality, meaning they have rights, duties, and capacity to act under international law.

### **Characteristics of a Subject of International Law:**

1. Capacity to enter into international relations.

2. Ability to claim rights and bear duties under international law.
3. Access to international legal remedies (e.g., approaching the ICJ).

### **Main Subjects of International Law:**

#### **1. States (Primary Subjects):**

Most important and full subjects of international law.

Have sovereignty, territory, government, and capacity to enter into relations.

Rights: territorial integrity, non-intervention, self-defense.

Duties: not to use force, respect treaties (pacta sunt servanda), etc.

#### **2. International Organizations:**

Created by treaties between states (e.g., United Nations, WTO, WHO).

Have limited international personality depending on their founding charter.

Can enter into treaties, claim privileges, and perform international functions.

#### **3. Individuals:**

Traditionally not considered subjects, but now recognized in:

Human rights law (e.g., under ICCPR, UDHR).

International criminal law (e.g., Nuremberg Trials, ICC for crimes like genocide, war crimes).

Can have duties and liabilities (e.g., for war crimes).

#### **4. Non-Governmental Organizations (NGOs):**

Not full subjects, but may enjoy observer status in international bodies.

Can influence international law through advocacy and reports.

#### **5. Multinational Corporations (MNCs):**

Limited personality in areas like investment law, international trade law.

May sue or be sued in international arbitration (e.g., ICSID).

#### **6. Insurgents and National Liberation Movements:**

Recognized in certain contexts (e.g., Geneva Conventions).

May have rights and responsibilities in armed conflicts.

#### **7. The Holy See and Sovereign Order of Malta:**

Not states in the traditional sense, but enjoy special legal status.

Can enter treaties and have diplomatic relations.

**Conclusion:**

The concept of "Subjects of International Law" has evolved. While States remain the primary subjects, the growing importance of international organizations, individuals, NGOs, and corporations reflects the dynamic and expanding nature of international legal personality.

## **Relationship between International Law and Municipal Law**

**Meaning:**

This topic examines how international law (laws between nations) interacts with a country's municipal (domestic) law. The key question is: Do international rules automatically apply within a country, or do they need to be transformed into national law?

**Main Theories:**

**1. Monism (Single Legal System):**

Monists believe international law and municipal law form a single legal system.

International law is automatically applicable within the state without needing domestic legislation.

International law is superior to municipal law.

Supporters: Hans Kelsen, Lauterpacht.

**Example:** Netherlands and France follow monism.

**2. Dualism (Two Separate Legal Systems):**

Dualists believe international law and municipal law are separate.

International law must be incorporated into domestic law through legislation to have legal effect.

If not incorporated, international treaties/customs have no direct effect.

Supporters: Triepel, Anzilotti.

**Example:** UK and India follow dualism.

**Judicial Approach in India:**

India follows a dualist approach.

International treaties are not enforceable in Indian courts unless Parliament passes a law to adopt them.

However, courts can use international law to interpret existing laws if there is no conflict.

**Important Case:**

**Vishaka v. State of Rajasthan (1997):**

The Supreme Court referred to the CEDAW treaty to fill gaps in Indian law related to sexual harassment.

The Court held that international conventions can be applied if they do not conflict with domestic law.

### **Conflict Between International and Municipal Law:**

In Monist systems, international law prevails.

In Dualist systems, domestic law prevails unless international law is adopted through legislation.

### **Conclusion:**

The relationship between international law and municipal law depends on whether a state follows monism or dualism. India is primarily dualist, but courts sometimes use international law principles to strengthen justice, provided they don't contradict Indian statutes.

## **State Recognition**

### **Meaning:**

State recognition is the formal acknowledgment by one state that another entity fulfills the criteria of statehood and can be treated as a sovereign state under international law.

### **Why is Recognition Important?**

Recognition gives a new state:

Legal capacity to enter into treaties

Rights and duties under international law

Access to international forums and diplomatic relations

### **Types of Recognition:**

#### **1. De Jure Recognition (Legal Recognition):**

Permanent and unconditional recognition.

Given when the recognizing state believes that the new state fulfills all the criteria of statehood (as per the Montevideo Convention).

**Example:** India gave de jure recognition to Israel in 1950.

#### **2. De Facto Recognition (Temporary or Provisional):**

Temporary or limited recognition.

Given when a state exists in fact but legality or permanence is uncertain.

Can be withdrawn or upgraded to de jure later.

**Example:** Many countries initially gave de facto recognition to the Taliban regime in the 1990s.

## **Theories of Recognition:**

### **1. Constitutive Theory:**

A state becomes a subject of international law only when recognized by other states.

Without recognition, it cannot have rights or duties under international law.

Criticism: Allows political bias; denies rights to entities fulfilling statehood criteria.

### **2. Declaratory Theory:**

Recognition is just a formal acknowledgment of an already existing fact.

If an entity fulfills all conditions of statehood, it is a state whether recognized or not.

Supported by the Montevideo Convention (1933).

Montevideo Convention criteria:

1. Permanent population
2. Defined territory
3. Government
4. Capacity to enter into relations with other states

### **Legal Effects of Recognition:**

Recognized states can:

Enter into treaties

Sue or be sued in international courts

Send and receive diplomats

Claim sovereign immunity

Recognition of Governments:

Sometimes, recognition is about a new government, not a new state.

Recognition of Government means accepting that the new regime is the legitimate authority of the state.

**Example:** The change from military to democratic government in Myanmar affects its recognition.

### **Withdrawal of Recognition:**

Recognition can be withdrawn if the recognized state/government loses control or legitimacy

**Conclusion:** Recognition plays a vital role in international diplomacy and legal relations. Whether through de facto or de jure methods, it enables new entities to function as full members of the international community.

# **Extradition and Asylum**

## **➤ Extradition**

### **Meaning:**

Extradition is the legal process by which one state surrenders a person (usually a criminal or accused) to another state on request, for trial or punishment of crimes committed within the jurisdiction of the requesting state.

### **Key Features:**

Based on treaties or mutual agreement.

It is not a right of one state, but a matter of diplomatic courtesy or treaty obligation.

Applies to serious criminal offences (not political or military offences).

### **Essential Conditions for Extradition:**

- 1. Dual Criminality:** The act must be a crime in both countries.
- 2. Specialty Rule:** The person must be tried only for the crime for which extradition was granted.
- 3. Sufficient Evidence:** Prima facie evidence is required.
- 4. Nationality Exception:** Many states refuse to extradite their own citizens.
- 5. Political Offence Exception:** No extradition for purely political crimes (e.g., peaceful dissent).

### **Legal Basis:**

Extradition is usually governed by bilateral or multilateral treaties (e.g., India has extradition treaties with 48 countries).

Some states allow extradition even without a treaty based on reciprocity.

### **Famous Case:**

#### **Abu Salem Extradition Case (India–Portugal)**

Abu Salem was extradited from Portugal to India under strict conditions that India had to respect, especially not to impose the death penalty.

## **➤ Asylum**

### **Meaning:**

Asylum is the protection granted by a state to a foreign national who is fleeing persecution, danger, or injustice, especially on political, religious, or humanitarian grounds.

### **Types of Asylum:**

#### **1. Territorial Asylum:**



Granted within the territory of the asylum-giving state.

Most common form (e.g., a person seeks refuge in another country).

Protected under Article 14 of the Universal Declaration of Human Rights.

## 2. Extra-territorial or Diplomatic Asylum:

Granted within embassies or consulates, or warships situated in foreign territory.

Highly controversial and not widely accepted.

**Example:** Julian Assange was given asylum by Ecuador in its London embassy.

## 3. Political Asylum:

Specifically granted to people persecuted for political opinions or actions.

Includes journalists, whistle-blowers, activists, etc.

### Legal Aspects:

Asylum is based on state sovereignty — no state can be forced to give or refuse asylum.

But the decision must not violate international obligations, like non-refoulement (do not return a person to a country where they face serious threats).

### Difference Between Extradition and Asylum:

| Basis              | Extradition                     | Asylum                                |
|--------------------|---------------------------------|---------------------------------------|
| Nature             | Legal surrender of a person     | Protection granted to a person        |
| Purpose            | For prosecution or punishment   | For safety from persecution           |
| Based on           | Treaties or mutual arrangements | Human rights and humanitarian grounds |
| Political offences | Usually not extradited          | Often protected under asylum          |

### Conclusion:

Extradition and Asylum are two important but opposite mechanisms in international law — one aims to surrender fugitives, the other to protect the persecuted. Both depend on state discretion and are governed by international principles, treaties, and human rights standards.

## Diplomatic Agents

### Meaning:

Diplomatic agents are the official representatives of one state to another, sent to maintain diplomatic relations, represent their state, and protect the interests of their nation and citizens abroad. They operate under the legal framework of the Vienna Convention on Diplomatic Relations, 1961, which governs their functions, privileges, and immunities.

### **Categories of Diplomatic Agents:**

Under Article 14 of the Vienna Convention, diplomatic agents are classified into three categories:

- 1. Ambassadors or High Commissioners** – Accredited to the Head of State.
- 2. Envoys, Ministers, and Internuncios** – Also accredited to the Head of State but ranked lower than ambassadors.
- 3. Chargés d’Affaires** – Accredited to the Foreign Minister, not the Head of State.

### **Functions of Diplomatic Agents (Article 3):**

1. Represent the sending state in the receiving state
2. Protect the interests of the sending state and its nationals
3. Negotiate with the government of the receiving state
4. Promote friendly relations (cultural, economic, political)
5. Report on developments in the receiving state to the home country

### **Privileges and Immunities:**

Diplomatic agents enjoy special protections to ensure smooth diplomatic relations. These are:

#### **1. Personal Inviolability (Article 29):**

They cannot be arrested or detained.

The host country must protect them from any harm.

#### **2. Inviolability of Premises (Article 22):**

Embassy premises are sacred and immune from entry by host officials without consent.

#### **3. Immunity from Jurisdiction (Article 31):**

Diplomatic agents cannot be sued or prosecuted in the host country’s courts (civil or criminal), except in:

Private commercial acts

Cases related to personal property

Inheritance matters

#### **4. Immunity from Taxes and Customs Duties (Article 34 & 36):**

Exempted from most taxes and customs duties on personal and official goods.

### **Abuse of Privileges:**

Sometimes, diplomats misuse immunity (e.g., committing crimes and escaping punishment).

In such cases, the receiving state can declare the diplomat persona non grata (unwelcome), leading to their expulsion.

**Termination of Diplomatic Mission:**

1. Completion of term
2. Breakdown of diplomatic relations
3. Declaration of persona non grata
4. War between countries

**Important Case:****United States v. Iran (Hostage Case, 1980)**

Iranian students seized US diplomats in Tehran. The ICJ ruled that Iran violated international law by not protecting diplomatic agents.

**Conclusion:**

Diplomatic agents are essential for peaceful and structured international relations. Their privileges and immunities are not personal benefits but tools to ensure independent functioning in a foreign country. However, responsible use of these rights is crucial for global harmony.

## **The Law of the Sea**

**Meaning:**

The Law of the Sea is a branch of international law that governs the rights and responsibilities of states in their use of the world's oceans. It covers navigation, maritime boundaries, natural resources, environmental protection, and more.

The primary legal framework is the:

United Nations Convention on the Law of the Sea (UNCLOS), 1982

Also known as the "Constitution of the Oceans"

Key Maritime Zones under UNCLOS:

**1. Territorial Sea (Article 3):**

Up to 12 nautical miles from the baseline (coastline).

Coastal state has full sovereignty over airspace, water, seabed, and subsoil.

Foreign ships have the right of innocent passage (cannot harm peace or security).

**2. Contiguous Zone (Article 33):**

12 to 24 nautical miles from the baseline.

Coastal state can enforce laws related to customs, immigration, sanitation, and security.

### **3. Exclusive Economic Zone (EEZ) (Article 55–75):**

Up to 200 nautical miles from the baseline.

Coastal state has sovereign rights to explore, exploit, conserve, and manage natural resources (fish, oil, gas).

Other states can navigate and lay submarine cables.

### **4. Continental Shelf (Article 76–85):**

Seabed and subsoil up to 200 nautical miles or more if the natural shelf extends.

Coastal state has rights over mineral and non-living resources.

Does not affect the water above — others can still navigate.

### **5. High Seas (Article 86 onwards):**

Beyond EEZ of any state.

Open to all states: freedom of navigation, fishing, research.

No state can claim sovereignty.

Key Principles:

Freedom of the High Seas

(Navigation, overflight, fishing, laying cables)

Peaceful Use of Oceans

(No military threats)

Protection of the Marine Environment

(Pollution control, biodiversity)

Marine Scientific Research

#### **International Institutions Involved:**

##### **1. International Seabed Authority (ISA)**

Regulates deep seabed mining in areas beyond national jurisdiction

##### **2. International Tribunal for the Law of the Sea (ITLOS)**

Settles disputes relating to interpretation of UNCLOS.

#### **Important Case:**

##### **Anglo-Norwegian Fisheries Case (1951, ICJ)**

The Court accepted Norway's method of drawing straight baselines to measure territorial sea — important for defining coastal zones.

**India and the Law of the Sea:**

India ratified UNCLOS in 1995.

**India claims:**

12 nautical miles territorial sea

24 nautical miles contiguous zone

200 nautical miles EEZ

India also has rights over an extended continental shelf (350 nautical miles in some areas).

**Conclusion:**

The Law of the Sea plays a crucial role in regulating access, use, and protection of ocean resources while ensuring peaceful navigation and cooperation between states. UNCLOS balances sovereign rights of coastal nations with freedom of use for all.

## **Territorial Sea**

**Meaning:**

The Territorial Sea is the area of the sea extending up to 12 nautical miles from a coastal state's baseline (usually the low-water line along the coast). Within this area, the coastal state exercises full sovereignty, just like it does on land — over airspace, water, seabed, and subsoil.

**Legal Basis:**

Governed by the United Nations Convention on the Law of the Sea (UNCLOS), 1982

Article 2: Sovereignty of a coastal state extends to its territorial sea

Public Interest Law Connection:

Territorial sea regulation is not only about sovereignty, but also about ensuring justice, fairness, and global cooperation. Here's how:

**1. Right of Innocent Passage (Article 17–19, UNCLOS):**

All foreign ships — including merchant vessels — have a right to innocent passage through the territorial sea of another state.

However, the passage must not threaten the peace, security, or environment of the coastal state.

**Public Interest Element:**

Protects global maritime navigation and international trade

Balances security of the coastal state with freedom of movement — crucial for global economic justice

## **2. Environmental Protection:**

Coastal states have the duty to prevent marine pollution in their territorial sea.

### **Public Interest Element:**

Clean and healthy seas are a collective right — part of environmental justice.

Coastal states must act in public interest to protect marine biodiversity and local fishing communities.

## **3. Security and Human Rights:**

States may deny passage to ships involved in slavery, piracy, human trafficking, or arms smuggling.

### **Public Interest Element:**

Upholds international peace, human dignity, and rule of law.

Prevents misuse of maritime space for crimes against humanity.

## **4. Dispute Settlement:**

Disputes related to territorial sea (e.g., overlapping claims) can be resolved through International Court of Justice (ICJ) or International Tribunal for the Law of the Sea (ITLOS).

### **Public Interest Element:**

Promotes peaceful resolution of conflicts

Ensures that smaller or weaker nations also get fair hearing and justice

### **Conclusion:**

The concept of Territorial Sea isn't just about sovereignty; it's deeply tied to global public interest, especially:

Protection of marine environment

Ensuring peaceful navigation

Preventing international crimes

Promoting fairness in sea boundary claims

It reflects how international law serves the broader interests of humanity, not just the interests of powerful states.

## **Exclusive Economic Zone (EEZ)**

### **Meaning:**

An Exclusive Economic Zone (EEZ) is a maritime zone that extends up to 200 nautical miles from the coastal baseline.

### **Within this zone, the coastal state has sovereign rights for:**

Exploring

Exploiting

Conserving

**Managing natural resources** — in the water, seabed, and subsoil

> EEZ was established under the United Nations Convention on the Law of the Sea (UNCLOS), 1982 – Articles 55 to 75.

**Public Interest Law Connection:**

EEZ is more than a technical or economic concept — it directly serves international public interest by balancing:

State sovereignty

Global equity

Environmental protection

Human development

**1. Equitable Use of Marine Resources:**

Coastal states have preferential rights over fish, oil, gas, etc. in their EEZ.

But they also have a duty to share surplus resources with other (especially developing or land-locked) states (Article 62, UNCLOS).

Public Interest Element:

Prevents monopoly over ocean wealth

Promotes global justice and equity, especially for poorer countries

Supports right to development under international law

**2. Protection of Marine Environment:**

Coastal states must:

Prevent pollution

Conserve biodiversity

Ensure sustainable use of ocean resources

Public Interest Element:

Healthy oceans are a common global resource

Protecting oceans is part of environmental justice

Ensures rights of future generations

### **3. Peace and Stability:**

EEZs are often disputed (e.g., South China Sea).

International law helps resolve these peacefully via ICJ, ITLOS.

Public Interest Element:

Prevents military conflict over ocean territories

Promotes peaceful cooperation and respect for rule of law

### **4. Rights of Land-Locked and Geographically Disadvantaged States (Articles 69–70):**

These states have the right to access and share marine resources of nearby EEZs.

Public Interest Element:

Promotes equality among nations

Supports collective ownership of global commons

Example: India's EEZ

India has an EEZ of approx. 2.37 million sq. km.

India is responsible for preserving the marine environment, ensuring fair use, and protecting traditional fishing communities.

### **Conclusion:**

The Exclusive Economic Zone is not only about a country's rights — it reflects a global commitment to:

Fair resource distribution

Environmental sustainability

Peaceful cooperation

And inclusive development

Thus, it is a critical concept in Public Interest Law, where ocean governance serves the interest of all humanity, not just coastal powers.

## **Continental Shelf**

### **Meaning:**

The Continental Shelf is the extended underwater landmass of a coastal state, which lies beyond its territorial sea and forms the natural prolongation of its land territory into the sea.

Under UNCLOS, 1982 (Articles 76 to 85), a coastal state has sovereign rights over the seabed and subsoil of its continental shelf:



Up to 200 nautical miles, and even beyond up to 350 nautical miles in some cases.

Only for exploration and exploitation of natural resources (like oil, gas, minerals).

**Key Difference:**

Unlike EEZ, the continental shelf includes only the seabed and subsoil — not the water above.

**Public Interest Law Connection:**

The idea of the continental shelf is closely tied to equity, sustainability, environmental justice, and peaceful cooperation — all central concerns of Public Interest Law.

**1. Principle of Sovereign Rights (Article 77, UNCLOS):**

Coastal states have exclusive rights to explore and exploit natural resources in the shelf.

**Public Interest Element:**

These rights must be used responsibly, not for private or elite profit.

Natural resources must serve the people — ensuring economic and social justice.

**2. Duties Towards Marine Environment:**

States must prevent pollution, control drilling damage, and protect marine ecosystems.

**Public Interest Element:**

Prevents environmental harm to marine life

Protects indigenous and fishing communities whose livelihood depends on the sea

Supports sustainable development — a core part of public interest law

**3. Rights of the International Community (Article 82, UNCLOS):**

If a state exploits resources beyond 200 nautical miles, it must share benefits with the international community via the International Seabed Authority (ISA).

**Public Interest Element:**

Prevents resource grabbing by powerful nations

Supports global justice — especially for land-locked and developing countries

**4. Peaceful Resolution of Disputes:**

If states claim overlapping continental shelves, disputes are resolved through:

ICJ

ITLOS

Or peaceful bilateral treaties

**Public Interest Element:**

Ensures fair resolution based on law, not power

Prevents conflict and promotes global peace

**Case Example:****Bangladesh v. Myanmar (ITLOS, 2012):**

Delimitation of continental shelf was done using equitable principles.

**Importance:** Promoted fair access to marine resources and upheld international justice.

**India's Continental Shelf:**

India claims an extended shelf up to 350 nautical miles in some regions.

The Ministry of Earth Sciences monitors responsible exploration.

Important for public good projects, energy development, and environmental safety.

**Conclusion:**

The Continental Shelf is more than a legal right — it's a global public trust. Its fair use must:

Respect environmental limits

Promote equitable development

Support the rights of weaker nations

And preserve the ocean as a common heritage of mankind

It reflects how international law protects collective interest over individual sovereignty — the very spirit of Public Interest Law.

## **Settlement of International Disputes**

**Meaning:**

Settlement of international disputes refers to the peaceful resolution of disagreements between states or other international actors, using legal or diplomatic means rather than war or force.

This is a fundamental principle of international law under Article 2(3) and Article 33 of the UN Charter.

**Why It Matters in Public Interest Law:**

Disputes between nations can lead to wars, displacement, environmental harm, and economic collapse. Peaceful settlement is essential for:

Upholding justice

Protecting human rights

Preserving international peace

Preventing suffering of civilians

Hence, peaceful dispute resolution directly supports the public interest at a global level.

### **Main Methods of Dispute Settlement:**

#### **➤ Diplomatic (Political) Means:**

##### **1. Negotiation:**

Direct discussion between parties to reach a mutual agreement.

Example: India–Bangladesh Land Boundary Agreement (2015).

##### **2. Mediation:**

A third party suggests solutions, but doesn't impose them.

Example: UN mediation in Cyprus conflict.

##### **3. Good Offices:**

A third party brings disputing states together to talk.

Example: UN Secretary-General offering good offices in Kashmir issue.

##### **4. Conciliation:**

A third party investigates the dispute and gives a non-binding report.

Public Interest Role: Encourages voluntary peace and reconciliation.

#### **➤ Legal (Judicial) Means:**

##### **1. Arbitration:**

Parties submit their dispute to an arbitral tribunal, and agree to accept the binding award.

Example: South China Sea Arbitration (Philippines v. China, 2016).

##### **2. Judicial Settlement (International Court of Justice – ICJ):**

Disputes are referred to the ICJ, and its judgment is binding.

Example: Kulbhushan Jadhav Case (India v. Pakistan, 2019).

### **Why Peaceful Settlement Serves Public Interest:**

Prevents war and suffering of civilians

Ensures fair access to resources, territory, or legal rights

Supports weaker states against stronger powers

Preserves human rights and international peace

Promotes rule of law over use of force

### **Role of the United Nations:**

Under Chapter VI of the UN Charter, all member states must resolve disputes peacefully.

Security Council and General Assembly can recommend solutions.

International Law Commission works on codification of dispute-settlement procedures.

### **Modern Relevance:**

Climate disputes

Border conflicts

Cybersecurity issues

Humanitarian interventions

All these require non-violent, law-based solutions for the global public good.

### **Conclusion:**

Peaceful settlement of international disputes reflects the very spirit of public interest law:

justice without violence, law above politics, and cooperation over confrontation.

It ensures that international conflicts are settled not by might, but by right.

## **Meaning and Definition of Treaties**

### **What is a Treaty?**

A treaty is a formal agreement between two or more states or international legal entities that creates binding rights and obligations under international law.

> It is often called the “contract of the international community.”

### **Authoritative Definition:**

According to Article 2(1)(a) of the Vienna Convention on the Law of Treaties, 1969 (VCLT):

> “A treaty means an international agreement concluded between States in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments and whatever its particular designation.”

### **Other Common Terms for Treaty:**

Agreement

Convention

Protocol

Charter

Statute

Pact

Covenant

These all may fall under the category of "treaty" if they meet the criteria under international law.

**Key Elements of a Treaty:**

- 1. Written Agreement
- 2. Between States or International Organizations
- 3. Governed by International Law
- 4. Intention to create Legal Obligations

**Why Treaties Matter in Public Interest Law:**

Treaties are powerful tools to:

Promote peace

Protect human rights

Ensure global justice

Conserve the environment

Regulate war, trade, disarmament, refugees, climate change, etc.

They reflect collective will to solve global issues in the interest of humanity.

**Examples of Public Interest Treaties:**

| Treaty                                                                                                                                                                                                                                  | Purpose                                                                                                                                                                                                                                                                                                                |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li>• UN Charter (1945)</li><li>• Geneva Conventions (1949)</li><li>• Refugee Convention (1951)</li><li>• Paris Agreement (2015)</li><li>• CEDAW</li><li>• ICC Statute (Rome Statute, 1998)</li></ul> | <ul style="list-style-type: none"><li>• Maintains international peace and security</li><li>• Protects human rights in war</li><li>• Safeguards refugee rights</li><li>• Combats climate change</li><li>• Promotes women’s rights</li><li>• Establishes int. Criminal Court to punish crimes against humanity</li></ul> |

**Conclusion:** A treaty is not just a legal contract — it is a tool for global governance. Through treaties, the international community:

Protects the interests of vulnerable groups

Promotes sustainable development

Upholds peace, justice, and human dignity

Thus, treaties are central to the objectives of Public Interest Law.

## **Formation and Termination of Treaties**

### **➤ Formation of Treaties**

The formation of treaties is governed by the Vienna Convention on the Law of Treaties, 1969 (VCLT). It outlines the legal process through which states enter into binding international agreements.

#### **Steps in the Formation of a Treaty:**

##### **1. Negotiation:**

States discuss the terms of the treaty.

Can take place through diplomatic channels or international conferences.

##### **2. Adoption of Text (Article 9, VCLT):**

The final agreed text is formally adopted.

Usually by consensus or two-thirds majority.

##### **3. Authentication:**

Final confirmation of the treaty's text (e.g., by signing the document).

##### **4. Expression of Consent to be Bound (Articles 11–15):**

This is the most important step where a state formally accepts the treaty. This can be done through:

Signature (for some treaties)

Ratification (approval by state's internal process, e.g., Parliament)

Accession (joining an already existing treaty)

Exchange of Instruments

##### **5. Entry into Force (Article 24):**

The treaty becomes legally binding once certain conditions (e.g., number of ratifying states) are met.

Public Interest Law Viewpoint on Treaty Formation:

Treaties must be formed transparently and reflect the collective will of people.

Should not serve elite or narrow political interests.

Should prioritize human rights, environment, justice, and peace.

## ➤ **Termination of Treaties**

A treaty may end or be withdrawn under specific conditions. This is also governed by the VCLT (Articles 54–64).

### **Modes of Termination:**

#### **1. As per Treaty Provisions (Article 54):**

Some treaties have built-in clauses for duration or termination conditions.

#### **2. Mutual Consent:**

All parties to the treaty agree to end or modify it.

#### **3. Material Breach (Article 60):**

If one party violates a fundamental provision, others may terminate the treaty.

#### **4. Impossibility of Performance (Article 61):**

If a crucial condition (e.g., geographic area) disappears, the treaty may be ended.

#### **5. Fundamental Change of Circumstances (Rebus Sic Stantibus – Article 62):**

A major unforeseen change can justify termination, e.g., drastic climate change or political transformation.

#### **6. Emergence of a Peremptory Norm (Jus Cogens – Article 64):**

If the treaty conflicts with a new universal legal principle (e.g., prohibition of genocide), it becomes void.

### **Public Interest Law Perspective on Termination:**

Treaties harming human dignity, environment, or justice may need to be reviewed or terminated.

States have a duty to withdraw from unjust treaties (e.g., colonial treaties, exploitative trade pacts).

Peace and people's welfare must always be prioritized over state convenience.

### **Example Cases:**

USA's withdrawal from Paris Climate Agreement (later reversed) – criticized for undermining global public interest.

South Africa's attempt to leave ICC – challenged due to concerns over accountability for crimes against humanity.

### **Conclusion:**

The formation and termination of treaties must be guided by law, but also by ethical responsibility. In Public Interest Law, treaties are not just legal texts — they are instruments for justice, peace, and equity across nations.